

1.0. General Provisions

1.1 Definitions

The following words and expressions shall have the meanings assigned to them, except where the context otherwise requires:

- 1.1.1 "Agreement" means this Consultancy Services Agreement together with its Appendix A [Scope of Services] and Appendix B [Remuneration and Payment].
- 1.1.2 "Project" means the project named on page 1 of the Agreement and as more particularly described in Appendix B.
- 1.1.3 "Services" means the services to be performed by the Consultant, which comprises of Normal Services, Additional Services and Exceptional Services.
- 1.1.4 "Normal Services" are those which are defined in the Appendix A [Scope of Services] for the Project described in Appendix B, and which the Consultant is obliged to perform under this Agreement
- 1.1.5 "Additional Service" means any Services/ Deliverables within the scope of the Contract, but not specifically provided under any Appendix, that once added will result in the need to provide the Consultant with additional consideration.
- 1.1.6 "Exceptional Services" are described under clause 4.7
- 1.1.7 "Country" means the country to which the Project (or most of it) relates.
- 1.1.8 "Party" and "Parties" means the Client and the Consultant and "third party" means any other person or entity as the context requires.
- 1.1.9 "Client" means the party named as such on page 1 of the Agreement, who employs the Consultant, and includes its legal successors and permitted assignees.
- 1.1.10 "Consultant" means the firm or individual named as such on page 1 of the Agreement, who is employed by the Client to perform the Services and includes its legal successors and permitted assignees.
- 1.1.11 "Commencement Date" means the date on which the Agreement is signed by the Parties.
- 1.1.12 "Time for Completion" means the time period as agreed upon in Appendix A for the provision of the Services.
- 1.1.13 "Day" means a calendar day.
- 1.1.14 "written" or "in-writing" mean hand-written, type-written, printed or electronically made, and resulting in a permanent un-editable record.
- 1.1.15 "Financial Compensation" means the sums defined in Appendix B which are payable by the Client to the Consultant.

1.2 Interpretation

- 1.2.1 The singular includes the plural and vice-versa where the context requires.
- 1.2.2 Words indicating one gender include all genders.
- 1.2.3 Provisions including the word "agree", "agreed" or "agreement" require the agreement to be recorded in writing, and signed by both Parties.
- 1.2.4 The documents forming this Agreement are to be taken as mutually explanatory of one another. If there is a conflict between these documents, the last to be agreed shall prevail.

1.3 Communication

- 1.3.1 Whenever provision is made for the giving or issue of any notice, instruction or other communication by any person, such communication shall, unless otherwise specified, be in the English language and shall not be unreasonably withheld or delayed.

1.4 Governing Law

- 1.4.1 This Agreement shall be governed by and construed in accordance with the Laws applicable in Dubai.

1.5 Changes in Legislation

- 1.5.1 If after the date of the Agreement the scope, cost or duration of the Services is revised as a result of changes in or additions to the laws or regulations in UAE in which the Services are to be performed, the revisions to the scope of services shall be regarded as Additional Services and the agreed remuneration and time for completion shall be adjusted accordingly.

1.6 Assignment and Sub-Contracts

- 1.6.1 The Consultant shall not without the written consent of the Client assign the benefits from the Agreement other than money.
- 1.6.2 Neither the Client nor the Consultant shall assign obligations under the Agreement without the prior written consent of the other Party.
- 1.6.3 The Consultant shall not initiate or terminate any sub-contract for performance of all or part of the Services without the written consent of the Client.

1.7 Copyright

- 1.7.1 The Consultant retains the design rights and other intellectual property rights and copyright of all documents prepared by him. The Client shall be entitled to use them or copy them only for the Project and the purpose for which they are intended and need not obtain the Consultant's permission to copy for such use.

1.8 Notices

- 1.8.1 Notices to be served under the Agreement shall be in non-electronic written forms and shall be deemed to have been served on receipt at the address stated in the Agreement. Delivery shall be by hand and facsimile message against a written confirmation of receipt or by registered letter.

1.9 Publication

- 1.9.1 The Consultant may publish material relating to the Works and Services. Publication shall be subject to approval of the Client if it is within two years of completion or termination of the Services.

1.10 Corruption and Fraud

- 1.10.1 In the performance of obligations under this Agreement, the Consultant and its employees shall comply with all applicable laws, rules, regulations and orders of any applicable jurisdiction. The Consultant shall be entitled to his fees under the Agreement and shall not receive any other payments related to the Project from any other party.

2.0. Functions and Duties of the Consultant:

2.1 Services

- 2.1.1 The Consultant shall provide and perform full range of Normal Services required for the Project as outlined in Appendix A.

2.2 Applied Standards

- 2.2.1 The Services to be provided by the consultant shall be in accordance with accepted international standards and the standards stipulated by the relevant local authorities or any other related departments.

2.3 Sequence of Work

- 2.3.1 The Consultant shall provide the said services progressively as detailed in Appendix A. The Consultant shall proceed from one phase to the other only on obtaining a letter of instruction to that effect from the Client.

2.4 Changes

- 2.4.1 The Consultant shall not make any material alterations, additions to or omission from the design and/ or specification of the Project and the Bill of Quantities approved by the Client, without prior knowledge, and written consent, of the Client.

2.5 Certificate of Completion

- 2.5.1 The Certificate of Substantial Completion, the Final Completion Certificate and End of Maintenance Period Certificate and all certificates relating to claims made by the Contractor on the Client which are or which may be required to be issued by the Consultant to the Client or to the Contractor either as Consultant or as Engineer, in terms of the Agreement or the Construction Contract, shall be issued only with the prior knowledge and approval of the Client.

2.6 Care and Diligence

- 2.6.1 The Consultant shall exercise all care and diligence in the discharge of its duties under the terms of this Agreement and shall undertake to maximize and protect the interest of the Client at all times.

2.7 Project Documents to the Client:

- 2.7.1 Consultant shall provide the Client with 2 Nos hard copy set and one soft copy in PDF/CAD format of complete drawing(s) after completion of any phase of work.
- 2.7.2 The Consultant shall always ensure to provide the Client with an updated copy of all project documents recorded on a USB and 2 Nos of hard copy.
- 2.7.3 After awarding the Construction Contract to the Contractor and final settlement of design fees, the Consultant shall provide the Client copies of the full set of tender drawings on USB in PDF/CAD plus 2 Nos. set of hard copy.

2.8 Project Documents for Tendering:

- 2.8.1 The Consultant shall prepare required number of sets on USB sticks of Project Documents in DWF and PDF format for the purpose of tendering, the cost of which is included in Consultant's fees as stipulated in Appendix B.
- 2.8.2 The Consultant shall prepare any number of additional hard/soft copies of project documents that could be requested for the Project as needed, other than those listed in clause 2.7. The cost of the same shall be reimbursed by the Client based on actual cost.

3.0. Obligations of the Client

3.1 Information

- 3.1.1 In order not to delay the Consultant in the performance of the Services, the Client shall within a reasonable time give to the Consultant free of cost all information which may pertain to the Services and which is reasonable in the circumstances.

3.2 Decisions

- 3.2.1 On all matters properly referred to him in writing by the Consultant the Client shall give his decision in writing within a reasonable time so as not to delay the Services.

3.3 Assistance

- 3.3.1 The Client shall do all in his power to assist the Consultant and his personnel in:
 - 3.3.1.2. Providing unobstructed access wherever required for the Services;
 - 3.3.1.3. Providing access to other organizations for collection of information which is to be obtained by the Consultant.
 - 3.3.1.4. Its provision of the Services and Additional Services.

3.4 Equipment and Facilities

- 3.4.1 The Client shall make available through its Contractor, free of cost, to the Consultant for the purpose of the Services all site offices, furnishings, computer equipment, refreshment and hygienic toilet facilities on the construction site for members of the Consultant's team/staff designated for the Project. Refer Appendix C for detailed list.

3.5 Client's Representative

- 3.5.1 The Client shall designate an official or individual to be his representative for the administration of the Agreement.

3.6 Services of Others

- 3.6.1 The Client shall at his cost arrange for the provision of specialist services required for the Project, which are not included in Consultant's scope of services outlined in Appendix A. The Consultant shall co-operate with the suppliers of such services but shall not be responsible for them or their performance.

3.7 Payment of Services

- 3.7.1 The Client shall pay the Consultant for the Services in accordance with Appendix B of the Agreement.

4.0. Commencement, Completion, Variation and Termination

4.1 Agreement Effective

- 4.1.1 The Agreement is effective either from the date of receipt by the Consultant of the Client's Letter of Acceptance of the Consultant's proposal or of the date of the last signature necessary to complete the execution of the Agreement, if any, whichever is later.

4.2 Commencement and Completion

- 4.2.1 The Services shall be commenced on the Commencement Date, shall proceed in accordance with the Time Schedule for the Services in Appendix A, and shall be completed within the Time for Completion, subject to extensions in accordance with the Agreement.

4.3 Variations

- 4.3.1 The Agreement can be varied on application by either Party by written agreement of the Parties.
- 4.3.2 If requested by the Client in writing, the Consultant shall submit proposals for varying the Services. The preparation and submission of such proposals shall be regarded as Additional Services.
- 4.3.3 The Consultant shall not be required to commence the varied Services until such time as the Client has given his written approval for the fees associated with the varied Services.

4.4 Delays

- 4.4.1 In the event the construction period, as determined by the Construction Contract between the Client and the Contractor, is extended for reasons whereby the Consultant or the Client are not responsible, the Consultant shall then be entitled to

financial compensation for supervision services for the entire extended period. The additional fees for extended supervision services shall be deducted from the Contractor's due payments by the Client and paid to Archcorp at the same monthly rate (as mutually agreed at the time)

- 4.4.2 In the event the construction period is extended for reasons due to the Client's requirements and instructions, the Consultant shall then be entitled to financial compensation for the extended consultancy supervision services and the Client shall pay the Consultant all such fees for the entire extended period, as mutually agreed.

4.5 Force Majeure

- 4.5.1 Neither Party will be held responsible if the performance of any of their respective obligations under the Agreement are in any way prevented, hindered or delayed as a result of circumstances outside its control (including but not limited to acts of God, acts of government, war, civil commotion, strikes, labour disputes, lock-outs) which in this Clause are called "Force Majeure" and the Party affected by the Force Majeure will be entitled to a reasonable extension of time (which will be not less than a period equivalent to the period of the event of Force Majeure) within which to perform its obligations.
- 4.5.2 As soon as possible after becoming aware of the occurrence of Force Majeure but in any event no later than 30 days after such occurrence, the Party claiming to be affected will inform the other by notice in writing of the circumstances and of the date on which the prevention or delay began. Thereupon the Parties will consult with each other with a view to agreeing on a course of action to overcome the consequences of the prevention or delay.

4.6 Abandonment, Suspension or Termination

- 4.6.1 The Client may suspend all or part of the Services or terminate the Agreement by giving at least 30 days' notice to the Consultant, and the Consultant shall immediately make arrangements to stop the Services and minimize expenditure.
- 4.6.2 If the Consultant is, without good reason, not discharging his obligations the Client may inform the Consultant by notice stating the grounds for the notice. If a satisfactory response is not received within 21 days, the Client may by a further notice of 15 days, terminate the Agreement.
- 4.6.3 After giving at least 30 days' notice to the Client, the Consultant may terminate the Agreement, or at his discretion, without prejudice to the right to terminate, may suspend or continue suspension of performance of the whole or part of the Services:
- 4.6.3.1. when 30 days after the due date for payment of an invoice he has not received payment; or
- 4.6.3.2. when services have been suspended under either Clause 4.5 or Clause 4.6.1 and the period of suspension has exceeded 90 days.

4.7 Exceptional Services

- 4.7.1 Upon the occurrence of circumstances described in Clause 4.5 or abandonment or suspension or resumption of Services or upon termination of the Agreement otherwise than under the provisions of Clause 4.6.2 any necessary work or expense by the Consultant in addition to the Normal and Additional Services shall be regarded as Exceptional Services.
- 4.7.2 The performance of Exceptional Services shall entitle the Consultant to extra time necessary for the delivery of such services and to payment for performing them.

5.0. Payment

5.1. Payment to the Consultant

- 5.1.1. The Client shall pay the Consultant for Normal Services in accordance with the conditions and the details stated in Appendix B [Remuneration and Payment], and shall pay for Additional Services at rates and prices which are given in or based on those in Appendix B, so far as they are applicable but otherwise as are agreed in accordance with Clause 4.3.

- 5.1.2. Unless otherwise agreed in writing the Client shall pay the Consultant in respect of exceptional Services.
- 5.1.3. Where the Client has required the Consultant to appoint selected consultants as the Consultant's sub-consultants, fees owed to those sub-consultants shall be due to the Consultant in addition to the Consultant's own fees.

5.2. Time for Payment

- 5.2.1. Amounts due to the Consultant shall be paid within 30 days of the Consultant's invoice.
- 5.2.2. The Client shall not withhold payment of any fee properly due to the Consultant without giving the Consultant a notice of his intention to withhold payment, with justifiable reasons, no later than four days prior to the date on which the fee payment becomes due. If no such notice of an intention to withhold payment is given or the reasons stated therein are; in the sole opinion of the Consultant; unjustifiable, then the Consultant shall have an enforceable contractual right to such payment.

5.3. Disputed Invoices

- 5.3.1. If any item or part of an item in an invoice submitted by the Consultant is contested by the Client, the Client shall give a notice of his intention to withhold payment with reasons within two weeks of receiving the invoice and shall not delay payment on the remainder of the invoice. Clause 5.2.2 shall apply to all contested amounts which are finally determined to have been payable to the Consultant.

6.0. Insurances

6.1. Professional Indemnity Insurance

- 6.1.1. The Consultant shall take out and maintain at its cost from the commencement of services and for a period 10 years after the completion of the Project, professional indemnity insurance to cover any gross negligence, errors or omissions in performance of services in connection with this Agreement with a limit of liability of not less than AED 3,000,000 for any one occurrence or series of occurrences.

7.0. Disputes

7.1. Dispute Resolution

- 7.1.1. In the event of any dispute arising between the client and the consultant concerning the interpretation of any clause in this contract, the Parties shall endeavor in the first instance to settle such dispute amicably and if such dispute is not resolved, it will then be referred to the concerned local courts of the Emirate of Dubai, U.A.E. to settle such differences. Only the Dubai Courts shall have jurisdiction over any dispute arising between the parties.

IN WITNESS WHEREOF the Parties hereto have executed this Agreement on the day and year first above written.

Signed and delivered by
The Client

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Signed and delivered for and
on behalf of Archcorp
Architectural Engineering
(Archcorp) by

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